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POSTAL MANUAL VOLUME III

Discipline & Appeal

Corrected & Verified Edition

Read with the CCS (CCA) Rules, 1965. This edition uses a dual-numbering convention so that the Departmental (Postal Manual Vol. III) paragraph and the corresponding CCS (CCA) Rule are both shown, e.g. **[PM X / CCS(CCA) R.Y]**. Where the two differ, the CCS (CCA) Rule is the operative statutory provision.

DISCLAIMER

This booklet is prepared strictly from an examination point of view. Every effort has been made to ensure accuracy and currency against primary sources (gazette notifications, DoPT consolidated instructions, and reported case law) as verified up to June 2026. It is a study aid only. Readers must refer to the official gazette and the latest DoPT/Postal Directorate instructions for authoritative text.

Reader's Note: How This Edition Was Corrected

Earlier circulating versions of these notes mixed two different numbering schemes — the Postal Manual Vol. III paragraph numbers and the CCS (CCA) Rules, 1965 rule numbers — and several chapter headings tagged a rule number that did not match the topic. In the CCS (CCA) Rules, the core provisions are fixed as follows, and this edition aligns every citation to them:

CCS (CCA) Rules, 1965 — Provision	Subject
Rule 10	Suspension (including deemed suspension and 90-day review)
Rule 11	Penalties (minor and major)
Rule 12	Disciplinary Authorities
Rule 13	Authority to institute disciplinary proceedings
Rule 14	Procedure for imposing MAJOR penalties (the inquiry)
Rule 15	Action on the inquiry report
Rule 16	Procedure for imposing MINOR penalties
Rule 17	Communication of orders
Rules 22–29	Appeals, review and revision

Chapter 1 – Stages of Disciplinary Proceedings

1. General Procedure

The procedure laid down in the Central Civil Services (Classification, Control and Appeal) Rules, 1965 must be followed rigidly. Any failure in its due observance is liable to vitiate the disciplinary proceedings, including the final order of punishment.

2. First Stage – Preliminary Decision to Proceed

This stage involves the decision to proceed against an employee after a preliminary enquiry, if necessary, into the alleged misconduct. When a report of misconduct is received, the appropriate authority decides whether there is justification for investigating the matter.

Preliminary Enquiry Guidelines

- At the preliminary stage, all available evidence and relevant documents should be collected.
- In important cases, witness statements should be reduced to writing and signed, if possible in the presence of the accused employee.
- **No prior sanction** of the punishing authority is required for holding a preliminary enquiry.
- The investigation report and preliminary evidence are examined to decide whether a *prima facie* case exists for formal proceedings.

The authority taking the preliminary decision should avoid expressing any definite opinion on the merits. If the decision is taken at a level lower than the competent disciplinary authority, all papers must be forwarded to that authority for the final decision on initiation; even where no action is proposed, the papers are shown to the competent disciplinary authority for information.

Note on Suspension

At this stage the competent authority must also examine whether the official should be placed under suspension pending proceedings — governed by **CCS(CCA) R.10** (see Chapter 6).

Chapter 2 – Framing of Charges [CCS(CCA) R.14 / R.16]

1. Issue of Charge Sheet

The charge sheet is issued in the prescribed proforma for either a Major Penalty or a Minor Penalty, giving all the particulars required under Rule 14 or Rule 16 of the CCS (CCA) Rules, 1965 as the case may be.

2. Principles of Drafting Charges

- **Definiteness:** the grounds of action must be reduced to a definite charge or charges.
- **Specificity:** charges must be clear, specific and precise; a separate charge for each separate offence.
- **Nature:** charges should not be petty or unnecessarily numerous.
- **No pre-judgment:** the wording must not express any opinion as to the guilt of the accused.

3. Attachments to the Charge Sheet

- **Statement of imputations** of misconduct/misbehaviour supporting each article of charge, free of any opinion on guilt.
- **Lists of evidence:** a complete list of documents and a complete list of witnesses by which the charges are to be sustained.

4. Defence Opportunity

The employee is required, within a reasonable time specified in the memorandum, to state whether he desires to be heard in person and to submit a written statement of defence. When sent by post, the memorandum of charges should be enclosed in a Registered Cover with Acknowledgement Due.

Chapter 3 – Conduct of Enquiry [CCS(CCA) R.14]

1. Mandatory Enquiry in Certain Minor-Penalty Cases [R.16(1-A)]

Although minor penalties are generally dealt with under Rule 16, a formal inquiry in the manner of Rule 14 (sub-rules 3 to 23) must be held if it is proposed to:

1. withhold increment of pay for a period exceeding 3 years; or

2. withhold increment of pay with cumulative effect for any period; or
3. impose withholding of increment that is likely to affect adversely the amount of pension admissible.

Legislative Basis

This is the settled position under **R.16(1-A)** of the CCS (CCA) Rules, 1965, originating in MHA O.M. No. 7/3/67-Ests.(A) dated 19.01.1968 and now part of DoPT's consolidated instructions.

2. Appointment of the Enquiry Officer (EO)

In major-penalty proceedings, an inquiry into charges not categorically admitted is obligatory. The disciplinary authority may inquire itself or appoint an Enquiry Officer.

- **Status:** the EO should not be lower in status than the accused officer.
- **Restrictions:** the inquiry should not be entrusted to the officer who held the preliminary enquiry and expressed a definite adverse opinion, nor to an officer directly subordinate to one who has expressed such an opinion.

3. Presenting Officer and Defence Assistant

- **Presenting Officer (PO):** the disciplinary authority may nominate a PO to present the case in support of the articles of charge.
- **Defence Assistant (DA):** the accused may take the assistance of another Government servant; prior permission is not required, intimation suffices, but the disciplinary authority is not responsible for ensuring that servant's release.
- **Legal practitioner:** the accused is ordinarily not entitled to engage a legal practitioner without permission; however, where the PO is a legal practitioner or a Government law officer/CBI prosecutor, the accused acquires the right to be represented by a legal practitioner.

Defence Assistant – Retired Government Servant [R.14(8)(b)]

A retired Government servant may act as Defence Assistant subject to the conditions in DoPT O.M. No. 11012/11/2002-Estt.(A) dated 05.02.2003, the chief being that he must **not have more than seven (7) cases in hand** at a time (the ceiling was raised from five to seven).

Separately, a *serving* Government servant may not act as DA if he already has **three (3) pending disciplinary cases** in hand. Enabling provision: **R.14(8)(a) & (b)**.

4. Enquiry Procedure

- **Documents:** the disciplinary authority sends the EO the documents indicated in **R.14(6)**; originals remain with the PO.
- **Plea:** before the inquiry begins the accused states whether he pleads guilty; if not, the inquiry proceeds.
- **Discovery:** the accused may apply for production and inspection of relevant Government documents not already listed.
- **Examination:** the PO produces documentary evidence and examines/cross-examines witnesses.
- **New evidence:** the EO may, in discretion, allow new evidence or recall witnesses under **R.14(15)**.

5. Conclusion of Enquiry

After the disciplinary authority's witnesses are examined, the accused states his defence orally or in writing and produces evidence. The EO may examine the accused personally. Both sides may file written briefs. The EO then submits a report recording findings on each article of charge separately, together with the reasons.

Chapter 4 — Action on the Enquiry Report [CCS(CCA) R.15]

1. Consideration of the Report

On receipt of the EO's report, the competent disciplinary authority examines it to decide whether the charges are established and whether the EO's findings should be accepted.

- **Disagreement with EO:** if the disciplinary authority disagrees with any finding, it must record its own findings and the supporting reasons, and supply a copy of the report (with its tentative reasons for disagreement, where applicable) to the charged officer for representation before final orders.
- **Supplementary enquiry:** the authority may direct the EO to hold, or may itself hold, a supplementary enquiry, subject to **R.14(15)**.

2. Determination of Penalty

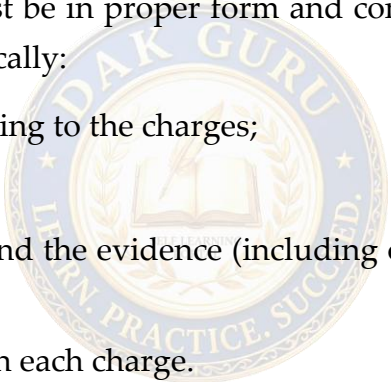
- **Extraneous matters:** a bad service record unconnected with the inquiry must not be used to establish a charge; past record may be considered only at the stage of deciding the *quantum* of penalty.
- **Decision:** once charges are held established, the authority decides the quantum of penalty and issues the final order.

3. Minor-Penalty Proceedings

Where proceedings are for a minor penalty, the disciplinary authority passes final orders after due consideration of the defence, unless a formal inquiry is required under R.16(1-A).

4. Final Order – Form

The order of punishment must be in proper form and contain a sufficient record of the evidence and findings, specifically:

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4. the facts and history leading to the charges;
 5. the charges in detail;
 6. a record of the defence and the evidence (including oral evidence) on each charge; and
 7. a statement of findings on each charge.

A copy of the order is furnished to the employee under receipt. Where the disciplinary authority itself acted as the enquiring authority, a copy of its own report must accompany the order.

Chapter 5 – Consultation with UPSC & CVC

1. Consultation with the UPSC

Where consultation with the Union Public Service Commission is required, the disciplinary authority forwards the inquiry report and records; final orders are passed only after the Commission's advice is received. A copy of the Commission's advice is furnished to the charged officer along with the final order.

2. Consultation with the CVC

In vigilance cases concerning officers within CVC jurisdiction, the Commission is consulted at the following stages:

Preliminary stage

- If a preliminary enquiry is considered unnecessary, the complaint (unless anonymous/pseudonymous) and the authority's views are sent for advice.
- If, after preliminary enquiry, no action is proposed, the case is reported for advice.
- If proceedings are proposed, the investigation report and records are sent for advice on further action.

Institution of proceedings

- If the CVC advises formal proceedings, it indicates whether they should be for a major or minor penalty; the Department then drafts the charge sheet.

Post-enquiry stage

- **Major penalty:** the EO's report and full records are referred for second-stage advice before a final decision.
- **Minor penalty:** the case is referred after the written statement of defence, indicating the authority's provisional conclusions.

3. Vigilance vs. Non-Vigilance Cases

CVC consultation is required only where there is an allegation of corruption or improper motive. Purely administrative or technical lapses (late attendance, insubordination, negligence, lack of supervision) generally do not require CVC reference. Where classification is doubtful, any case with a prima facie or potential vigilance angle should be referred.

Chapter 6 – Suspension (General) [CCS(CCA) R.10]

1. Authority to Suspend [R.10(1)]

The appointing authority, any authority to which it is subordinate, the disciplinary authority, or any other authority empowered by general or special order, may place a Government servant under suspension where a disciplinary proceeding is contemplated

or pending, where his conduct is under investigation in a criminal case, or where it is otherwise in the public interest.

- **Lower authority:** if the order is passed by an authority lower than the appointing authority, the circumstances must be reported to the appointing authority forthwith.
- **Competence:** competence must be verified before issue; an unauthorised suspension may entitle the official to full pay and allowances for the period.
- **Form:** suspension must never be ordered orally.

2. Deemed Suspension [R.10(2)]

EXAM POINT

A Government servant is **deemed** to be under suspension, without any separate order, if he is **detained in custody (whether on a criminal charge or otherwise) for a period exceeding 48 hours**, or is **convicted of an offence and sentenced to imprisonment exceeding 48 hours** and is not forthwith dismissed/removed.

This was omitted from earlier notes and is a frequently-tested point.

3. Borrowed Services [R.10 read with deputation terms]

Where a servant on deputation/loan is concerned, the borrowing authority may place him under suspension; the lending authority must be informed forthwith. (Earlier notes cited “Rule 20” for this; the suspension power itself is under Rule 10 read with the terms of deputation.)

4. Review of Suspension [R.10(6) & R.10(7)]

Suspension must be kept to the barest minimum and reviewed periodically by a Review Committee. Every effort should be made to serve the charge sheet within 3 months of suspension; if not, the matter is reported to the next higher authority with reasons, and the total period of suspension should not ordinarily exceed the limits below.

Statutory Review of Suspension — Verified

Sub-rules (6) and (7) were inserted in Rule 10 by **G.S.R. No. 2, published in the Gazette of India dated 3 January 2004**, which came into force on **2 June 2004**. (The “23.12.2003” date in earlier notes is incorrect.)

R.10(6): a suspension order is reviewed before expiry of **90 days** from the effective date, on the recommendation of the Review Committee; subsequent reviews before expiry of each extended period; **extension not exceeding 180 days at a time.**

R.10(7): an order of suspension is **not valid after 90 days** unless extended after review before expiry of 90 days. (Proviso: for deemed suspension under R.10(2), the 90 days count from release/intimation of release from detention.)

Case law: *Union of India v. Dipak Mali*, (2010) 2 SCC 222 — if review/extension is not done within 90 days, the suspension lapses automatically and a later review cannot revive it.

5. Arrest and Conviction — Duty to Report

A Government servant arrested or convicted by a court must immediately inform his official superior of the facts. Failure to do so is suppression of material information and is itself a separate ground for disciplinary action.

6. Headquarters During Suspension

- **Headquarters:** the station of posting immediately before suspension; the disciplinary authority may fix a different place in the interest of public service.
- **Leaving HQ:** a suspended officer remains subject to all service conditions and must not leave HQ without permission.
- **Change of HQ:** permitted on request if it entails no extra T.A. to Government and causes no difficulty to the investigation.

Chapter 7 — Subsistence Allowance & Recoveries [FR 53]

1. Entitlement

A suspended Government servant is entitled to subsistence allowance from the date of suspension at the rate prescribed in Fundamental Rule (FR) 53 — ordinarily an amount equal to the leave salary on half-pay, plus the admissible dearness allowance thereon.

- **Review of rate:** if suspension exceeds 3 months, the authority reviews the rate for the subsequent period.

- **Variation limit:** at any review the rate may be increased or decreased, but the increase or decrease must not exceed **50% of the amount admissible during the first three months.**

2. Suspension Ending in Minor Penalty [FR 54-B]

Where proceedings instituted for a major penalty finally end in a minor penalty, the suspension is generally treated as wholly unjustified, and the official is normally paid full pay and allowances for the suspension period by an order under FR 54-B (the period being treated as duty).

3. Recoveries from Subsistence Allowance

A. Compulsory deductions

- Income tax (where the income is taxable).
- House rent, electricity, water and allied charges.
- Repayment of Government loans and advances (at rates fixed by the Head of Department).
- CGEGIS (Central Government Employees Group Insurance Scheme) subscription.

B. Optional deductions (only with written consent)

- PLI (Postal Life Insurance) premia.
- Dues of co-operative stores/societies.
- Refund of advances taken from the GPF.

C. Prohibited deductions

- Subscription to GPF.
- Amounts due on court attachments.
- Recovery of loss to Government for which the suspended officer is held responsible (except with consent).

Pension Rules – Currency Note

The *CCS (Pension) Rules, 1972* stand superseded by the **CCS (Pension) Rules, 2021** (notified 20.12.2021). Recovery of pecuniary loss from subsistence allowance is generally not made without the official's written consent or request.

Chapter 8 – Allowances & Pay Revision During Suspension

1. House Rent Allowance

- **Rent-free accommodation:** the concession ceases from the date of suspension and rent at the usual rate is recovered, though the official need not vacate unless the quarter is attached to a designated post. If full pay and allowances are later allowed, the concession is restored and rent refunded.
- **HRA eligibility:** if the official vacates, HRA is admissible only where otherwise admissible at the HQ of suspension, calculated on the pay drawn immediately before suspension (not on the reduced subsistence allowance).

2. Revision of Pay Scale

If the pay scale of the post is revised with retrospective effect from a date prior to suspension, the official may exercise his option under FR 23 even if the option period falls within the suspension, and is entitled to the consequential increase in subsistence allowance.

3. Effect of Dismissal/Removal Set Aside

Where dismissal, removal or compulsory retirement is set aside and the official is deemed to have been under suspension (e.g. on a court remand for further enquiry), he is entitled to subsistence allowance for the deemed-suspension period; any private earnings during that period are deducted.

Chapter 9 – Unauthorised Absence

1. Definition and Scope

Unauthorised absence is subversive of discipline and includes:

8. absence from duty without previously sanctioned leave;
9. overstay of sanctioned leave without prior approval for the excess; and
10. being away from duty beyond the limits in **Rule 32(2)(a) of the CCS (Leave) Rules, 1972** (the 1972 Leave Rules remain in force, as updated by DoPT).

2. Administrative Action

- **Rejoining:** the official is normally allowed to rejoin but must explain the absence; an unsatisfactory explanation may lead to action under CCS (CCA) Rules, 1965.
- **Refusal to rejoin:** persistent failure to rejoin invites a serious view and may result in removal/dismissal.
- **Dies Non:** the competent authority may treat the days of unauthorised absence as *dies non* — not counting as service, carrying no pay/allowances [proviso to FR 17(1)], but not by itself a break in service for pension unless forfeiture is ordered.

3. Ex-Parte Proceedings for Absconding Officials

11. Issue the charge sheet under **R.14** by Registered A.D. post to the last known address.
12. If the letter is returned undelivered, or the official fails to submit a defence or appear, the enquiring authority may hold an ex-parte inquiry.

Chapter 10 – Departmental Examinations & Promotion

1. Eligibility for Examinations

An official under suspension or facing disciplinary proceedings may be admitted to departmental examinations, provided he satisfies all other prescribed conditions.

2. Promotion — Sealed Cover Procedure

Promotion of such officials is decided under the “Sealed Cover” procedure laid down by the Government; promotion cannot be given effect while the official is under suspension or facing formal disciplinary proceedings, the recommendation being kept in a sealed cover until the case concludes.

Chapter 11 – Disciplinary Jurisdiction & Powers

1. Competence of Authority

- **Exclusive jurisdiction:** a penalty may be imposed only by the prescribed punishing authority.
- **No concurrent jurisdiction:** an appellate or higher authority cannot exercise concurrent original disciplinary jurisdiction.

- **Independence:** a higher authority must not direct the penalty, nor should the punishing authority seek the consent of a superior.
- **President's power:** these restrictions do not affect the power of the President to impose any penalty on any Government servant.

2. Officers Performing Current Duties

An officer appointed to perform the current duties of a post may exercise administrative or financial powers of the incumbent, but may not exercise statutory powers derived directly from an Act or Rules (such as the CCS (CCA) Rules) unless specifically empowered by notification.

3. Determination of Authority

- **Current status:** the disciplinary authority is determined by the official's posting at the time of the disciplinary case, not at the time the offence was committed.
- **Appellate forum:** determined by the authority that imposed the penalty; a later transfer is not material.

4. Ad-hoc Disciplinary Authority

Where the prescribed authority cannot function (e.g. being personally concerned or a material witness), the matter is reported to the Postal Directorate with full details, for appointment of an Ad-hoc Disciplinary Authority by the President.

Chapter 12 – Common Proceedings [CCS(CCA) R.18]

Where two or more Government servants are concerned in the same matter, departmental proceedings should, as far as possible, be conducted together by a single authority (usually the highest among the competent authorities), so that evidence and defences are examined together. This is governed by

- **Rule 18** of the CCS (CCA) Rules, 1965.
- **President's sanction:** where the officials belong to different grades and different disciplinary jurisdictions, the President's order is necessary to initiate common proceedings, specifying the disciplinary authority and the rules to apply.

Chapter 13 – Medical Inefficiency & Language of Charges

1. Action Against Medically Unfit Officials

- **Active employment:** no employee is retained in active employment when physically or mentally unfit for proper discharge of duty.
- **Leave vs. duty:** an official in bad health must apply for leave; “bad health” is not an excuse for neglecting duty while on the job.
- **Medical examination:** in appropriate cases the employee may be referred for medical examination to determine fitness, in accordance with the Central Civil Services (Medical Examination) Rules, 1957.

2. Language of the Charge Sheet

- **Official language:** the charge sheet may be served in English or Hindi.
- **Translation:** it is for the official to obtain a translation into any other language he requires.
- **Understanding:** the authority should ensure, as far as possible, that the official fully understands the charges.

Chapter 14 — Inspection of Documents

1. Timing of Request

- **Pre-enquiry:** a request to inspect relevant documents should be made before the formal inquiry stage.
- **Preliminary statements:** if the accused asks to inspect statements recorded at the preliminary stage before filing his written statement, the request is acceded to where those witnesses are to be examined at the formal inquiry.

2. Right of Access

The right of access to official records is not unlimited. Access may be denied where the records are not relevant, or where disclosure is not desirable in the public interest. Refusal must be exercised sparingly, for cogent and substantial reasons, recorded in writing.

3. Inspection Restrictions

- **Witness statements:** only statements of witnesses proposed to be examined at the formal inquiry need be shown.

- **Minor-penalty cases:** under R.16, where no formal inquiry is held there is no statutory obligation to allow inspection, though the authority may permit it to enable the defence.

Chapter 15 – The Enquiry Officer & Proceedings

1. Selection of Enquiry Officer

- **Neutrality:** only disinterested officers should be appointed; the appointee must not be open to a charge of bias.
- **Witness bar:** an official who is a witness cannot be appointed EO or PO.

2. Witness Statements

Statements of witnesses recorded during the inquiry should be signed by the witness, the accused officer and the Enquiry Officer, so that the validity of the record cannot be questioned later.

3. Supply of Copies

Copies of oral statements recorded by the EO are normally supplied to the delinquent officer, on request, before he is called upon to make his own statement.

4. Death of the Accused

Disciplinary proceedings abate immediately on the death of the alleged offender; no proceedings under the CCS (CCA) Rules can continue thereafter. (For pension/gratuity recovery, the position is now governed by the relevant rules of the CCS (Pension) Rules, 2021.)

Chapter 16 – Orders and Penalties

1. Communication of Orders

The officer who records the findings should ordinarily communicate the order under his own signature; in exceptional cases the successor may communicate the predecessor's decision without modification.

2. Effect of Withholding Increment

The penalty of withholding an increment takes effect from the date the next increment accrues after the punishment order; it cannot affect an increment that fell due before the order, even if not drawn (e.g. because the officer was on leave).

3. De-Novo Proceedings

- **Quashing of charges:** where an appellate authority sets aside a punishment and remits for de-novo trial, the original proceedings (including the charge sheet) are deemed quashed unless the order specifies the stage from which the re-trial begins.
- **New charges:** the disciplinary authority may frame fresh charges on the facts originally disclosed.

4. Review of Own Orders

A punishing authority generally cannot cancel or revise its own order; revision lies with the appellate or reviewing authority. Exceptions: where the order is inoperative (e.g. withholding the increment of an official already at the maximum of the scale), or where the punishment rested on a criminal conviction since set aside by a court, the same authority may revise/cancel it.

Chapter 17 – Miscellaneous Administrative Rules

1. Absence Due to Dismissal/Removal Set Aside [FR 68]

Absence from duty for more than 5 years at a stretch resulting from being restrained from duty under Government orders (e.g. a removal/dismissal later set aside) is not treated as absence for the purpose of FR 68.

2. Punishment Register

All officers possessing disciplinary powers, including non-gazetted supervisory officers, must maintain a Punishment Register in the prescribed form (Appendix form), recording the names, designations and pay of those punished, the nature of the offences, and the penalties imposed.

3. Handling of Petitions

- **To Ministers:** petitions on disciplinary matters addressed to the Secretary, Deputy Minister, Minister or Prime Minister (as distinct from the President) need not be entertained and may be withheld by lower authorities.

- **To the President:** petitions addressed to the President must be forwarded to the Directorate and cannot be withheld by any lower authority.

4. Station Leave

No employee may leave his station of posting without the specific permission of his immediate superior, whether on duty or on leave.

5. Retention of Records

Records of disciplinary and appellate proceedings have significant legal value and are retained for the period prescribed by the applicable Record Retention Schedule according to the category of the file, as explained below.

Record Retention – Verified

The “25 years” in legacy manual text is not the operative rule. Record retention in Government offices is governed by the **Public Records Act, 1993** and **Public Records Rules, 1997**, read with **Chapter 10 of the Central Secretariat Manual of Office Procedure (CSMoP, 2022)** and the **Record Retention Schedule (RRS) issued by DARPG** (latest guidelines vide DARPG O.M. dated 01.08.2025).

Retention turns on the **category** of the file. Category ‘C’ files are kept for a specified period not exceeding 10 years; Category ‘A’ and ‘B’ (permanent / long-term value) files are reviewed on attaining their 25th year in consultation with the National Archives of India — which is the likely origin of the legacy “25-year” figure.

GFR Appendix 13 and **CSMoP Appendix 28** are cross-referenced *within* the RRS but are secondary to it. For the Department of Posts, the applicable Circle/Region RRS and any departmental retention schedule (settled with the National Archives) govern. Verify the current category and period before quoting a fixed figure for a disciplinary file.

6. Attachment of Pay by Courts

Notices of court orders attaching pay and allowances are received as follows:

Status of Official	Authority to Receive the Notice
Gazetted Officers	The Pay and Accounts Officer (PAO) who normally disburses the salary and allowances.

Status of Official	Authority to Receive the Notice
Non-Gazetted Officers	The Head of Office in which the officer is employed for the time being.

Non-Attachability of Subsistence Allowance

Under **Section 60(1) of the Code of Civil Procedure, 1908**, subsistence allowance granted to a Government servant under suspension is exempt from attachment in execution of a court decree. Any order purporting to attach it is void to that extent and should be brought to the court's notice at once.

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